

		Alevizoses and Plaintiffs. (<i>Estate of Gonzalez</i> (1990) 219 Cal.App.3d 1598, 1601-1602.)
11.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	1. MOTION FOR TERMINATING SANCTIONS Defendant’s Motion for Terminating Sanctions is CONTINUED to August 4, 2026, at 9:00 a.m. The Court has reviewed the in camera supplemental declarations of Dawn M. Smith and Daniel Lopez Revelez in response to the Court’s 6/23/26 order. The declarations demonstrate Plaintiff Lucia Gunn was, at an earlier stage of the litigation, able to communicate and participate in the litigation. The declarations also show that counsel engaged in reasonable efforts to present an accurate declaration from Ms. Gunn regarding her condition in advance of the mandatory settlement conference in June 2025. However, counsel should have maintained regular communication with Ms. Gunn and updated the Court and opposing counsel promptly when Ms. Gunn became unable to communicate or participate meaningfully in the action. The Court intends to issue a final ruling regarding sanctions at the continued hearing on 8/4/26. It appears Ms. Gunn now lacks capacity to participate in the litigation. (Code Civ. Proc. §§ 372, 373; see <i>In Re Sara D.</i> (2001) 87 Cal.App.4th 661, 665-666.) Ms. Smith’s declaration states that it is infeasible for a family member to be appointed as Plaintiff’s guardian ad litem in this case. However, the Code of Civil Procedure does not limit a guardian ad litem to a plaintiff’s family member. Plaintiff’s counsel shall appear in person at the hearing prepared to discuss why Plaintiff’s husband cannot serve as guardian ad litem and whether another third party, such as an attorney with another law firm, could be retained to serve as a guardian ad litem for the remainder of this litigation. The Court expects Ms. Smith to make all reasonable efforts to obtain a guardian ad litem and to file and serve a declaration detailing such efforts no later than five court days before the continued hearing date. 2. MOTION TO BE RELIEVED AS COUNSEL OF RECORD Plaintiff’s Counsel’s Motion to be Relieved as Counsel is CONTINUED to August 4, 2026, at 9:00 a.m. On 6/23/25, the Court continued the hearing because moving counsel had not filed a proof of service of the motion, and the

		motion did not state whether personal service was effected on Plaintiff, who is apparently unable to communicate, or Plaintiff's husband, who was the main point of contact. Moreover, Defendant has opposed the motion on grounds including undue delay and prejudice to Defendant. On 6/29/26, Plaintiff's counsel filed a proof of service of the motion on Ms. Gunn via overnight delivery on 5/14/26, as well as proof of service of the notice of continuance. Plaintiff's counsel filed an untimely reply brief on 7/7/26, asserting that withdrawal is necessary because of their inability to communicate with the client or her husband. The motion is continued to allow Plaintiff's counsel to determine whether a third-party guardian ad litem can be retained for the remainder of the litigation which could avoid the necessity for withdrawal. 3. MOTION TO EXCLUDE EXPERTS Defendant's Motion to Exclude Expert Witnesses is DENIED as moot as to the exclusion of experts and GRANTED as to monetary sanctions. Defendant seeks to exclude Plaintiff's expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts' depositions. As set out in the Court's 6/23/26 order and the declaration of Defendant's counsel, Plaintiff's counsel had repeatedly failed to cooperate in Defendant's request to depose her expert witnesses. However, based on Defendant's 7/1/26 supplemental declaration and Plaintiff's 7/7/26 supplemental brief, the parties have made arrangements to complete the expert witness depositions sufficiently in advance of trial – July 15 and 17. Therefore, the motion is moot as to exclusion of expert witnesses. Defendant's counsel declares they incurred \$3,200 in attorney fees plus \$60 in filing costs related to Plaintiff's counsel's failure to cooperate in expert discovery. (7/1/26 Jackson Decl., ¶ 6.) Plaintiff's counsel is hereby ordered to pay \$3,260 in monetary sanctions to Defendant no later than 7/31/26.
12.	ECKHOFF VS. FAMILIES FORWARD 2026-01574381	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Petitioner Stephanie Eckhoff's motion for a Preliminary Injunction restraining and enjoining Respondent Families Forward from taking any action to further terminate her program status or her continued